		Thus, defendants have demonstrated that the expired agreement that contained the arbitration clause remains in effect based on the language quoted above, and the reasoning of *Litton.* Plaintiff also argues novation, but has failed to demonstrate that the new agreement between ADP, plaintiff and defendants involves the same parties as the TriNet agreement. Civ. Code § 1531. Defendants' evidentiary objections are OVERRULED. Plaintiff is ordered to arbitrate his claims. This matter is STAYED pending completion of the arbitration. The case management conference is vacated. The court sets a status conference regarding the arbitration for January 22, 2027 in Department C28 at 9:00 a.m. Five days before the status conference the parties are ordered to submit a joint statement concerning the arbitration. Defendants shall give notice of this ruling.
55.	Rosas v. American Honda Motor Co., Inc. 2025-01455312	Defendant American Honda Motor Co., Inc.'s Motion to Tax Costs is GRANTED in part and DENIED in part. Defendant seeks an order striking Plaintiffs' Memorandum of Costs (seeking $1,036.65 in costs) in its entirety or, alternatively, taxing it by $323.30. Code of Civil Procedure § 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure Section 1033.5 sets forth the items that are allowable as costs. Items not mentioned in section 1033.5 may be allowed or denied in the court's discretion. Additionally, Code of Civil Procedure section 1033.5(c) states that allowable costs shall be reasonable in amount and "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (Ibid.) But conclusory assertions alone are not enough to cause this

shift to happen. "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." (*Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557.)

Defendant first contends that the entire memorandum of costs should be stricken because it is not supported by "adequate documentation." This argument fails because Plaintiffs were not required to support their verified memorandum of costs with "documentation" or evidence in the first instance. (See ROA 51.) Rather, if the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776.)

Defendant next argues that any post-998 offer costs--costs incurred after 8/13/25 – should be stricken from Plaintiffs' Memorandum of Costs. Plaintiffs agree. Plaintiffs, however, argue that some of these costs were mandatory filings incurred to effectuate the settlement and are recoverable as a matter of law because they were reasonably necessary to bring the case to a conclusion. These costs include the following:

- September 15, 2025 – Notice of Settlement – $2.25
- September 15, 2025 – Notice of Settlement e-filing or service – $10.25
- September 16, 2025 – Courtesy Copy of Notice of Settlement – $35.00

The court agrees that such costs were reasonably necessary to effectuate the settlement and will allow such costs to be recovered. Plaintiffs have not objected to the remainder of the costs Defendant contends were incurred post-998 offer.

Accordingly, the court GRANTS the motion, in part, and taxes Plaintiffs' Memorandum of Costs in the amount of $275.80 ($323.30-$47.50).

Plaintiffs are awarded $760.85 ($1036.65-$275.80) in costs.

The court continues the order to show cause regarding dismissal of this settled case to July 17, 2026 at 9:00 a.m. in Department C28.

Plaintiffs shall give notice of this ruling.

56.	Duffy v. Hyundai Motor America 2025-01481786	Defendant Hyundai Motor America's demurrer to plaintiff Colin F. Duffy's First Amended Complaint [FAC] is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) The 5th cause of action for fraudulent inducement – concealment is sufficiently alleged. (*Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 665-666 [concealment elements]; *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41 [outside of duties imposed by statute or arising out of a confidential / fiduciary relationship, a duty to disclose may arise where "the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff," or from a "preexisting relationship between the parties, such as 'between seller and buyer ... or parties entering into any kind of contractual agreement;" internal citations omitted]; Complaint, ¶¶ 7 [warranty]; ¶¶ 48-52 [concealment of material facts regarding exclusively known defects and describing same]; 54 [duty to disclose]; 50-53, 55 [scienter]; ¶¶ 56, 57 [reasonable reliance]; ¶ 59 [proximately caused damages].) Defendant's motion to strike the punitive damages allegations in the FAC is DENIED. As the 5th cause of action is sufficiently pled, it supports punitive damages allegations. (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610.) Moving defendant shall file an Answer to the FAC within 10 days. The case management conference is continued to September 28, 2026 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
57.	Williams v. Sevilla Homeowners Association 2021-01183871	Plaintiffs H. Newell Williams, Jr. and Kimberly Clark-Williams' motion for leave to augment and/or amend their expert witness designation is GRANTED, on the conditions discussed below. (Code Civ. Proc., §§ 2034.610 [authorizing motion], 2034.620 [factors].) The court orders that plaintiffs are granted leave to amend their expert witness designation, to: (1) substitute James Gardner for David Spiegel; and (2) augment the subject matter of Grant Teeple's retention and testimony, as set forth in plaintiffs' amended expert designation (Garrison Decl., Ex. D). Said relief is conditioned upon: (1) plaintiffs making both Gardner and Teeple available for deposition prior to 6-5-26; and (2) plaintiffs shall be responsible for the costs of any